

Zuberi Fibers Private Limited v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 January 2019 · Writ-C No. 1286 of 2019 · **Writ disposed; EE to consider 6.14 installments and 6.5 bill correction.**

HEADNOTE

A writ seeking quash of a recovery citation for electricity arrears and correction of bills was disposed without a merits decision. The Executive Engineer was directed to consider an installment proposal under clause 6.14 of the Electricity Supply Code, 2005, keeping the citation in abeyance if the consumer applied by the stipulated date; and, if 40% of the citation amount was deposited with an undertaking for the balance as decided under 6.14, to consider bill-correction grievances under clause 6.5. Collection charges were not to be recovered if those conditions were met.

FACTUAL SUMMARY

Zuberi Fibers Private Limited challenged a recovery citation dated 14 December 2018 issued by the collector for Rs. 2,96,29,235 towards electricity arrears of Dakshinanchal Vidyut Vitran Nigam Limited, Aligarh, and sought correction of its electricity bills. The company pleaded financial distress, said it could not deposit the entire sum at once, and stated that Rs. 70 lacs had already been paid. It invoked clause 6.14 of the Electricity Supply Code, 2005 for installments. Licensee counsel did not object to examining bill-correction grievances if amounts were deposited against the citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installments of electricity arrears

HOLDING

If the consumer approaches the Executive Engineer within ten days with a certified copy of the order and a proposal to deposit the entire recovery-citation amount, the EE shall consider the application in accordance with law under clause 6.14 of the Electricity Supply Code, 2005 and pass a fresh order within a further fifteen days. Subject to an application being filed by 28 January 2019, the recovery citation dated 14 December 2018 remains in abeyance pending that order.

¶ 1

HOLDING-UNIT · UP-2005::6.5

correction of electricity bills

HOLDING

If the consumer deposits 40% of the citation amount on or before 1 March 2019 and undertakes to deposit the remaining amount as decided by the Executive Engineer under clause 6.14, the EE shall consider the grievance regarding correction of electricity bills under clause 6.5 of the Code. If those conditions are satisfied, no collection charges shall be recovered. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS WERE INCORRECT OR REQUIRED CORRECTION ON MERITS

¶ 1

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 14.12.2018 WAS LIABLE TO BE QUASHED

¶ 1

NOT DECIDED — WHETHER THE CONSUMER WAS ENTITLED TO INSTALLMENTS AS OF RIGHT UNDER CLAUSE 6.14

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.